

Assam Panchayat (Constitution) Rules, 1995

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[Assam Panchayat \(Constitution\) Rules, 1995](#)

[Published vide Notification No. PDA. 268/94/222, dated 19.3.1996](#)

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[Notification No. PDA. 268/94/222. - In exercise of the powers conferred by sub-section \(1\) of Section 141 of the Assam Panchayat Act, 1994 \(Assam Act No. XVIII of 1994\). The Governor of Assam is pleased to make the following rules, namely-](#)

[This will come into force with retrospective effect as per provision of sub-section \(2\) of Section 141 of the Assam Panchayat Act, 1994 \(i.e with effect from 6th May, 1994\).](#)

[1.](#)

[Short title and Commencement.](#)

[\(1\)](#)

[These rules may be called the Assam Panchayat \(Constitution\) Rules, 1995.](#)

(2)

They shall come into-force from the date appointed by the State Government in this behalf.

2.

Definition.

- In these rules, unless there is anything repugnant in the subject or context-

(a)

"Act" means The Assam Panchayat Act, 1994, (Assam Act No. XVIII of 1994);

(b)

"Ballot box" means one includes any box, bag or other receptacle used for the insertion of ballot papers during election as under sub-rule (5) of Rule 14, sub-rule (1) of Rule 37, clause (ii) of sub-rule (h) of Rule 48 and clause (ii) of sub-rule (6) of Rule 50 of these rules; .

(c)

"bye-election" means an election held for filling up a vacancy caused by death, resignation, removal or otherwise of the President and Vice-President and Member of Gaon Panchayat and directly elected members of Anchalik Panchayat and Zilla Parishad;

(d)

"electoral roll" means the list of voters of the Gaon Panchayat prepared and published under the provisions of sub-rules (1) to (12) of Rule 12 of this rules;

(e)

"Form" means a form appended to these rules;

(f)

"General election" means any election other than a bye election under the provisions of the Act;

(g)

"Deputy Commissioner" means the Deputy Commissioner of the District;

(h)

"Sub-Divisional Officer" means the Sub-Divisional Officer of the outlying Sub-Division;

(i)

"Notification" means a notification published in the official Gazette;

(j)

"sign" in relation to a person who is unable to write his name, means his thumb impression, authenticated by a person authorised in this behalf by the Deputy Commissioner or the Sub-Divisional Officer, as the case may be;

(k)

"Public holiday" means any day which is a public holiday under Section 25 of the Negotiable Instrument Act, 1881 (Act XXN of 1881) or any day which has been notified by the State Government to be a holiday for the Government Offices in the State of Assam;

(l)

"Section" means the Section of Act;

(m)

"State Government" means the Government of Assam;

(n)

"State Election Commission" means the Election Commission constituted under Article 243K of the Constitution of India;

(o)

"State Election Commissioner" means State Election Commissioner, of Assam appointed under 'Section 114 of the Act read with Article 243K of the Constitution of India;

(p)

words and expressions used in these Rules had not defined shall have the meanings respectively assigned to them in the Act. '

3.

Conduct of Panchayat Election.

(a)

Panchayat election or bye-election, as the case may be, shall be conducted by the State Election Commission under

sub-section (1) of Section 114 of the Act.

(b)

Subject to the superintendence, direction and control of the State Election Commissioner, the Deputy Commissioner shall co-ordinate and supervise all works in the District within his jurisdiction in connection with the conduct of all election to Panchayat.

(c)

Election of members to represent District Planning Committee. - To represent the District Planning Committee for a Panchayat year, the Zilla Parishad or the Municipal Corporation or the Municipality or the Town Committee as the case may be, under the District, shall elect required number of members from amongst the Members or Councillors as the case may be, of the respective institution excluding those as under clauses (a), (b), (c) and (d) of sub-section (2) of Section 3 of the Act on the basis of proportion as under clause (e) of sub-section (2) of Section 3 of the Act, by raising of hands in a meeting held for the purpose before the date of commencement of each Panchayat year.

(d)

Such meeting shall be presided over by the President of the Zilla Parishad or the Mayor of the Municipal Corporation or the Chairperson of the Municipality or the Chairperson of Town Committee as the case may be, and in absence of the President or the Mayor or the Chairperson, the Deputy of respective institution shall preside over such meeting. The President of the Zilla Parishad or Mayor of Municipal Corporation or Chairperson of Municipality or Chair Person to Town Committee or the respective Deputy shall propose the names of the required number of members for approval of the members. If the process fails, the members shall be selected by drawing lots in the manners as under clause (i) of sub-rule (2) of Rule 45.

(e)

The terms of the Office of the members so selected shall be only for a period of one Panchayat year.

4.

Restriction on Delegation of powers by the Deputy Commissioner or the Sub-Divisional Officer.

- The Deputy Commissioner or the Sub-Divisional Officer, as the case may be, shall not delegate any of his powers having any bearing on election of the members of the Gaon Panchayat or Anchalik Panchayat or Zilla Parishad.

5.

No person shall be a voter of more than one Gaon Panchayat.

6.

Delimitation of the Constituencies in a Gaon Panchayat.

(1)

The Deputy-Commissioner or the Sub-Divisional Officer, as the case may be, shall immediately after declaration of a Gaon Panchayat under sub-section (1) of Section 5 of the Act, delimit the number of constituencies as per sub-section (2) of Section 6 of the Act and delimit each such constituency on the basis of household numbers in the manner that no household is split.

(2)

Reservation of constituencies for the Scheduled Castes and the Scheduled Tribes respectively, in a Gaon Panchayat area shall be decided on the basis of proportion as provided under subsection (1) of Section 9 of the Act by the concerned Deputy Commissioner or the Sub-Divisional Officer as the case may be. While calculating the number of seats to be so reserved, if the result bears any fraction which is 5 or more it shall be rounded off to the next higher integer and if it less than 5 then it shall be ignored. In making reservation of the required number of constituencies for the Scheduled Tribes in a Gaon panchayat area, the constituencies with the higher number of Scheduled Castes or Scheduled Tribes population as the case may be, shall be reserved first and soon in order of such population in the descending order. The notice for reservation -of the Scheduled Castes and Scheduled Tribes constituencies shall be published on or before seven clear days from the date of submission of nominations. The copies of such notice shall be fixed respectively in the Gaon Panchayat Office and the Block Development Office concerned:

Provided that reservation of constituencies for Scheduled Castes or Scheduled Tribes as the case may be under this provision shall be allotted by rotation to different Constituencies having Scheduled Castes and Scheduled Tribes population in the descending order of such population as provided here-in-above.

(3)

Determination of Constituencies Reserved for Women. - Reservation of constituencies for Women in a Gaon Panchayat

area shall be decided on the basis of proportion as under sub-section (3) of Section 9 of the Act, by the Deputy Commissioner or the Sub Divisional Officer as the case may be, by drawing lots before the date of issue of notification calling for nominations and names of such reserved constituencies shall be notified by the Deputy Commissioner or the Sub-Divisional Officer as the case may be, before seven clear days from the date of submission of nomination. The copies of such notice shall be fixed at the office of the Block Development Officer and at the Gaon Panchayat office concerned.

(4)

(a)

Number of the Offices of the Chairpersons of Gaon Panchayats to be reserved for the Scheduled Castes or the Scheduled Tribes as the case may be, under subsection (4) of Section 9, shall bear the same proportion of total number of such offices in the Gaon Panchayat of the Districts as the proportion of Scheduled Castes and the Scheduled Tribes as the case may be, of the district bears to the total population of the district. The concerned Deputy Commissioner of the district shall determine the Offices of Chairpersons to be so reserved. While calculating the number of Offices to be so reserved, if the result bears any fraction which is 5 or more it shall be rounded off to the next higher integer and if it is less than 5 then it shall be ignored. In selecting the Gaon Panchayats for reservation of the Offices of Chairpersons for the Scheduled Castes and Scheduled Tribes, the Gaon Panchayat with the highest number of Scheduled Castes and the Scheduled Tribes population, as the case may be, shall be reserved first and so on in order of such population in the descending order:

Provided that such reservation of the Offices of Chairpersons shall be allotted by rotation among the Gaon Panchayats having Scheduled Castes and Scheduled Tribes population in the descending order of such population as provided here-in-above;

(b)

Out of the total Offices of Chairpersons to be reserved for the Scheduled Castes or the Scheduled Tribes as the case may be, in the District, not less than 33% of such Offices shall be reserved for women of Scheduled Castes and Scheduled Tribes. The Gaon Panchayats to be so reserved for women of Scheduled Castes and Scheduled Tribes shall be determined by drawing of lot by the Deputy Commissioner of the District concerned and shall be allotted by rotation;

(c)

The Gaon Panchayat reserved for women Chairpersons under sub-section (4) of Section 9 of the Act shall not be less than 33% of the total number of Gaon Panchayats in the District including the seats reserved for women of the Scheduled Castes and the Scheduled Tribes and such reservation shall be determined by the concerned Deputy Commissioner by drawing of lot and shall be allotted by rotation;

(d)

For lottery of seats for women reservation the representatives of all recognised Regional and National Political Parties shall be taken into confidence:

(e)

The notice for reservations under this sub-rule shall be published on or before seven clear days from the date of submission of nominations. The copies of such notice shall be fixed respectively in the Gaon Panchayat Office and the Block Development Office concerned.

The offices of the Vice-President of Gaon Panchayat shall be reserved in the same manner as prescribed for reservation of the President as laid down under, sub-rule (4) of rule 6 of these rules:

Provided that the offices of Vice-President of Gaon Panchayat shall not be reserved for persons belonging to Scheduled Castes or Scheduled Tribes in which the offices of the President of Gaon Panchayat have already been reserved for the Scheduled Castes or Scheduled Tribes as the case may be, such reservation of offices of Vice-President of Gaon Panchayat shall be done with, the highest number of Scheduled Castes or Scheduled Tribes population as the case may be, in descending order, after excluding the Gaon Panchayat in which the office of the President has already been reserved on the basis of highest number of Scheduled Castes or Scheduled Tribes population.

(5)

Determination of the Office for President and Vice-President of Gaon Panchayat for people belonging to Scheduled, Castes and Scheduled Tribes. - Reservation of Offices of President and Vice-President of Gaon Panchayat for the people belonging to the Scheduled Castes and Scheduled Tribes on the basis of proportion in the District as under clause (b) of sub-section (2) of Section 10 of the Act, shall be decided by the Deputy Commissioner by means of

drawing-of lots before the date of issue of notification calling for nominations and the names of such reserved Gaon Panchayat for election of the Offices of President and the Vice-President shall be notified by the Deputy Commissioner before seven clear days notice from the date of submission of nominations. The copies of such notice shall be fixed at the Offices of the Deputy Commissioner and Sub-Divisional Officer and the Block Development Officer and the Offices of Gaon Panchayat concerned.

7.

Delimitation of Constituencies of An Anchalik Panchayat.

(1)

The Deputy Commissioner or the Sub-Divisional Officer as the case may be, immediately after declaration of an Anchalik Panchayat by the State Government by Notification as under sub-section (1) of Section 31 of the Act, shall delimit the constituencies as per sub-section (1) of Section 32 of, the Act, the basis of which shall be as under Rule 6 of these rules.

(2)

(a)

The number of seats to be reserved in a Anchalik Panchayat for the Scheduled Castes and the Scheduled Tribes for direct election shall be determined in the proportion as provided under sub-section (1) of Section 34 of the Act, by the Deputy Commissioner of the concerned District. In determining the number of seats to be so reserved, if the result bears a fraction which is 5 or more it shall be rounded off to the next higher integer and if it is less than 5 it shall be ignored. In selecting the Gaon Panchayats for reservation under this provision; the Gaon Panchayat with the highest number of Scheduled Castes or Scheduled Tribes population, as the case may be, shall be reserved first and so on in order of such population in the descending order :

Provided that reservation of the Gaon panchayats under this provision shall be allotted by rotation among the Gaon Panchayats having Scheduled Castes and Scheduled Tribes population in the descending order of such population as provided here-in-above;

(b)

Out of the total seats reserved under clause (a) above, not less than 33% of the number of Gaon Panchayats so reserved for the member of Anchalik Panchayat belonging to Scheduled Castes or Scheduled Tribes in the District, shall be reserved for women of Scheduled Castes or Scheduled Tribes as the case may be, and shall be determined by the Deputy Commissioner of the District concerned by drawing of lot and shall be allotted on rotation:

Provided that such reservation shall be done on rotation among the Gaon Panchayats having Scheduled Castes or Scheduled Tribes population

(c)

The seats reserved for the women member to Anchalik Panchayat of the District shall not less than 33% of the total number of seats including the seats reserved for women Scheduled Castes or Scheduled Tribes and such reservation shall be determined by the concerned Deputy Commissioner by drawing of lot and shall be allotted by rotation;

(d)

For lottery of seats for women reservation, the representative of all recognized regional and national political parties shall be taken into confidence.

(e)

The notice for reservations under this sub-rule shall be published by the Deputy Commissioner no or before seven clear days from the date of submission of nominations. The copies of such notice shall be fixed in the Office of the Gaon Panchayat and the Block Development Officer concerned.

(f)

The offices of the Vice-President of Anchalik Panchayat shall be reserved in the same manner as prescribed for reservation of the President as laid down under Rule-7 of these rules:

Provided that the Offices of the Vice-President of Anchalik Panchayat shall not be reserved for the person belonging to Scheduled Castes or Scheduled Tribes in which the offices of the President of Anchalik Panchayat has already been reserved for Scheduled-castes or Scheduled Tribes as the case may be. Such reservation of offices of Vice President of Anchalik Panchayat shall be done With the highest number of Scheduled Castes of Scheduled Tribes population as the case may be, in descending order, after excluding the Anchalik Panchayat in which the offices of President has already been reserved on the basis of highest number of Scheduled Castes or Scheduled Tribes population.

(3)

(a)

Such number of Offices of the President and Vice President of the Anchalik Panchayats in the district shall be reserved for the persons belonging to the Scheduled Castes and the Scheduled Tribes as the case may be, as may be determined by the concerned Deputy Commissioner on the basis of the proportion as provided under clauses (a) and (b) of sub-section (1) of Section 38 to the Act. In determining the number of seats to be so reserved, if the result bears a fraction which is '5' or more it shall be rounded off to the next higher integer and if it is less than '5' it shall be ignored. In selecting the Anchalik Panchayats for reservation under this provision, the Anchalik Panchayat with highest number of Scheduled Castes and Scheduled Tribes population as the case may be, shall be reserved first and so on in order of such population in the descending Order:

Provided that such reservation shall be done on rotation among the Anchalik Panchayats having the Scheduled Castes and Scheduled Tribes population in the descending order of such population.

(b)

Out of the total seats reserved under Cause (a) above, not less than 33% of the offices of the Presidents and the Vice-Presidents shall be reserved for women of Scheduled Castes and Scheduled Tribes. The seats to be reserved for women of Scheduled Castes and Scheduled Tribes shall be determined by the concerned Deputy Commissioner of the district by drawing of lot from amongst the seats reserved for the Scheduled Castes and the Scheduled Tribes and shall be allotted by rotation;

(c)

Not less than 33% of the total, number of Offices of the President and Vice-President of Anchalik Panchayat in a district including the officers reserved for the women of Scheduled Castes or Scheduled Tribes as the case may be shall be reserved for women and such reservation shall be determined by drawing of lot by the concerned Deputy Commissioner and allotted by rotation;

(d)

For lottery of seats for women reservation, the representatives of all recognised Regional and National Political parties shall be taken into confidence;

(e)

The notice for reservation under this sub-rule shall be published by the Deputy Commissioner on or before such clear days from the date of submission of nomination. The copies of such notice shall be fixed in the office of the Deputy Commissioner and the Block Development Officer concerned.

8.

delimitation of Constituencies of a Zilla Parishad.

(1)

The State Government shall declare a Zilla Parishad by Notification as under sub-section (1) of Section 64 of the Act, and immediately after such declaration. delimit the constituencies as per sub-section (1) of Section 65 of the Act, on receipt of proposals with recommendation from the Deputy Commissioners and Sub-Divisional Officers, the basis of which shall be as under Rule 6. While delimiting Zilla Parishad Constituencies it shall be ensured that no Gaon Panchayat is made to fall in two Zilla Parishad constituencies.

(2)

(a)

The number of seats to be reserved for the Scheduled Castes and Scheduled Tribes as the case may be, for members in the Zilla Parishad shall be determined by the Deputy Commissioner of the concerned district in the proportion as provided under subsection (1) of Section 66 of the Act. In determining the number of seats to be so reserved if the result bears a fraction which is '5 or more it shall be rounded off to the next higher integer and if it is less than 5 then it shall be ignored. In selecting the member constituencies for reservation under this provision, the member constituency with highest number of Scheduled Castes or Scheduled Tribes population as the case may be, shall be reserved first and so on in the descending order of such population:

Provided that such reservation shall be done on rotation among the member constituencies having Scheduled Castes and Scheduled Tribes population in the descending order of such population as provided here-in-above;

(b)

Out of the total seats reserved under clause (a) above, not less than one-third of the total seats so reserved, shall be

reserved for the women of the Scheduled Castes or the Scheduled Tribes as the case may be, by the Deputy Commissioner and such seats shall be determined by drawing of lot and allotted by rotation;

(c)

Not less than one-third including the number of seats reserved for women belonging to the Scheduled Castes and the Scheduled Tribes as the case may be, for the members of Zilla Parishad, shall be reserved for women in the manner as provided under sub-section (1) of Section 67 of the Act, by the concerned Deputy Commissioner of the district by drawing of lot and shall be allotted by rotation;

(d)

For lottery of seats for women reservation the representative of all recognised Regional and National Political parties shall be taken into confidence;

(e)

The notice of reservation: under this sub-rule shall be published by the Deputy Commissioner on or before seven clear days from the date of submission of nominations. the copies of such notice Shall fixed in the office of the Deputy Commissioner, the Sub-Divisional Officer and the Block Development Officer Concerned.

(3)

Determination of Seats for Women Belonging to Scheduled Castes and Scheduled Tribes in Zilla Parishad. - Reservation of seats of the office members to be directly elected to Zilla Parishad for women belonging to Scheduled Castes and Scheduled Tribes shall be decided by the Deputy Commissioner on the basis of proportion as under sub-section (2) of Section 66 and sub-section (1) of Section 67 of the Act, by means of drawing of lots before the issue of notification calling for nominations and the names of such reserved seats shall be notified by the Deputy Commissioner before seven clear days notice from the date of submission of nominations. The copies of such notice shall be fixed at the offices of the Deputy Commissioner, the Sub-Divisional Officer and Block Development Officer and the Anchalik Panchayat offices concerned.

9.

Population.

- Calculation of population of as under sub section (1) of Section 65 should be on the basis of last Census Report.

10.

Name and Serial Number of Gaon Panchayat and Anchalik Panchayat and Zila Parishad Constituencies.

- The Deputy Commissioner and the Sub-Divisional Officer as the case may be, shall after fixing the number of constituencies under Rules 6 7 and 8 of these rules allot an appropriate name to each such constituency on consideration of the local name of the village or villages or part of a Village falling in such constituency. All such constituencies of Gaon Panchayat, Anchalik Panchayat and Zilla Parishad shall be arranged by assigning a serial number against the name of each constituency.

11.

Publication of names and areas of Gaon Panchayat and Anchalik Panchayat and Zilla Parishad Constituency.

- The Deputy Commissioner or the Sub-Divisional Officer as the case may be, shall immediately after determination of the areas and names of the constituencies of Gaon Panchayat, Anchalik Panchayat and Zilla Parishad as Under Rule 10 of these rules cause to prepare a statement showing therein the serial number, name and area of each constituency and publish the same by hanging a copy in the offices of the Development Blocks, Gaon Panchayat, Anchalik Panchayat and Zilla Parishad concerned and such other public places as may be considered necessary by him.

12.

List of Voters for each Constituency of Gaon Panchayat, Anchalik Panchyat and Zilla Parishad.

(1)

When delimitation of constituencies for election of the President of the Gaon Panchayat and Member of Gaon Panchayat, Anchalik Panchayat and Zilla Parishad is made under Rules 6, 7 and 8 of these rules, the State Election Commission shall cause to prepare list of voters for each constituency.

(2)

Where the electoral roll of the Assam Legislative Assembly prepared under the provisions of the Representation of the Peoples Act, 1951 is in force on such day as the State Election Commission by general or special order notify in this behalf for such part of the constituency of the Assembly as is included in the Gaon Panchayat or Anchalik Panchayat or the Zilla Parishad as the case may be, shall be the list of voters for such Gaon Panchayat or the Anchalik Panchayat or

the Zilla Parishad, as the case may be.

The Deputy Commissioner and Sub-Divisional Officer shall bifurcate the Electoral Rule of the Assam Legislative Assembly-in force as per constituencies of the Member of the Zilla Parishad, Anchalik Panchayat and Gaon Panchayat and the same shall be published as Electoral Rule for such Gaon Panchayat, Anchalik Panchayat and Zilla Parishad by hanging in the offices of the Development Blocks, Gaon Panchayats, Anchalik Panchayats and Zilla Parishads and in any public places as may be considered by them and thereafter the State Election Commissioner shall by general or special order notify the said bifurcated Electoral Rule as the final Electoral Rule for the Gaon Panchayat, Anchalik Panchayat and Zilla Parishad constituencies.

[Omitted Sub-Rules (3) to (10)]

13.

Right to Vote.

(1)

No person shall, in case of Election of President and member of Gaon Panchayat, member of Anchalik Panchayat and member of Zilla Parishad from the Gaon Panchayat area and from the Zilla Parishad area, exercise his right to Vote except in the particular Constituency of the Gaon Panchayat and the District, in the electoral role of which his name has been entered as under sub-rule (1) of Rule 12 of these rules.

(2)

No person shall exercise his right to vote in more than one Gaon Panchayat or Zilla Parishad Constituency.

(3)

Seats in Panchayat at various levels shall be reserved for Scheduled Castes, Scheduled Tribes and Women as provided for in the Act, in the manner as may be prescribed by the State Election Commission.

14.

Method of Voting.

(1)

every person entitled to vote shall appear in person to cast his vote.

(2)

Every voter of Gaon Panchayat Constituency shall be entitled to have and cast one vote for electing a President of the Gaon Panchayat, one vote for electing a member of the Gaon Panchayat and one member for the Anchalik Panchayat from the Gaon Panchayat area.

(3)

Every voter of a Zilla Parishad Constituency shall be entitled to have and cast one vote for electing a member of the Zilla Parishad.

(4)

If an elector casts more than one vote for a candidate in contravention to sub-rules (2) and (3), such vote shall be rejected as void.

(5)

Voting shall be done by marking a ballot paper secretly in the polling booth and inserting the same in a sealed ballot box to be kept for the purpose.

15.

Fixation of Date of Election.

- The date for any General or Bye election meant for the Panchayats at all levels shall be fixed and notified by the State Election Commission.

16.

Issue of Notice fixing the date of Election, Submission of Nomination and Scrutiny and withdrawal thereof.

(1)

Not less than 30 (thirty) days before the date fixed for election under Rule 15 of these rules, the Deputy Commissioner or the Sub-Divisional Officer as the case may be, shall publish a notice in the language of the region or in such other language or languages as may be considered necessary for the purpose, stating-

(a)

the date on which, the place at which, the hours between which and the category of representatives for which nomination papers are to be presented, an interval of seven clear days being allowed between the date of publication of

such notice and the date for presentation of nomination papers:

Provided that the date for filing of nomination paper shall be fixed and notified by the State Election Commission,

(b)

the date on which, the place at which and the hours between which the nomination papers may be taken up for scrutiny, such date being Within 3 (three) days after the date of submission of nomination papers;

(c)

the last date, place and time for withdrawal of candidature after the date of scrutiny shall not be less than 15 (fifteen) days ahead of the date of election:

Provided that the last date of withdrawal of candidature shall be fixed and notified by the State Election Commission as under Section 114 of the Act;

(d)

the date at which and the polling station at which, the election Of the Gaon Panchayat, Anchalik Panchayat or the Zilla Parishad Constituencies shall be held and hours during which the poll shall be open.

(2)

The notice prepared under sub-rule (1) shall be published by fixing it at the office of the Block Development Officer concerned or at such other public places as may be considered necessary by the Deputy Commissioner or the Sub-Divisional Officer as the case may be.

(3)

The place for submission of nomination papers, scrutiny and withdrawal thereof in case of the member of Gaon Panchayat may be fixed at the office of the Block Development Officer and in case of president of Gaon Panchayat, the member of Anchalik Panchayat and Zilla Parishad may be fixed at the office of the Deputy Commissioner or the Sub-Divisional Officer as the case may be.

17.

Polling Station.

- In every constituency delimited for election of different officers for Gaon Panchayat, Anchalik Panchayat and Zilla Parishad, the Deputy Commissioner or the Sub-Divisional Officer as the case may be, shall select suitable places as polling stations for holding election in such Constituency. Polling station may be determined as per instruction of the State Election Commission.

18.

Appointment of Presiding Officers and Polling Officers.

(1)

The Deputy Commissioner or the Sub-Divisional Officer as the case may be, shall appoint a Presiding Officer for such Polling station and such number of Polling Officer as he may consider necessary for conducting the elections under these Rules, but he shall not appoint any person who has been working for a candidate in election:

Provided that if a Polling Officer is absent from the Polling Station, the Presiding Officer may appoint in writing any person, who is present at the Polling station, other than a person who has been employed by or on behalf of or has been otherwise working for a candidate in or about the election, to be the Polling Officer during the absence of the former officer and the Presiding Officer shall inform the Deputy Commissioner of the Sub-Divisional Officer as the case may be accordingly.

(2)

The Polling Officer shall, if so directed by the Presiding Officer, perform all or any of the functions of a Presiding Officer under these rules or orders made thereunder.

(3)

If the Presiding Officer, owing to illness or unavoidable circumstances is compelled to absent himself from the Polling Station, his functions shall be performed by such Polling Officer as may have been authorised by the Deputy Commissioner or the Sub-Divisional Officer as the case may be, to perform such functions during such absence

(4)

In these rules in respect of the Presiding Officer shall, unless the context otherwise requires, be deemed to include any person performing any function which he is authorised to perform under sub-rule (2) or sub-rule (3) as the case may be.

19.

General Duty of the Presiding Officer and Polling Officers.

- The Presiding Officer shall be present at the Polling Station at least one hour before the time notified for commencement of the poll with the required number of ballot boxes, the ballot papers and the copy or copies of the electoral roll/rolls of the Gaon Panchayat, Anchalik Panchayat or the Zilla Parishad Constituency, as the case may be. It shall be the general duty of the Presiding Officer to maintain peace and order of the Polling Station and to see that the poll is fairly taken and it shall be the duty of the Polling Officer at the Polling Station to assist the Presiding Officer in the performance of his functions.

20.

Appointment of Polling Agents.

(1)

A contesting candidate may appoint in writing to be delivered to the Presiding Officer, one Polling Agent at each Polling Station.

(2)

No Polling Agent shall be admitted into the Polling Station unless he has been duly appointed under sub-rule (1).

21.

Choice of Symbols.

(1)

The list of symbols prescribed in this behalf in Schedule- I of these rules shall be used in such election as for which it is specifically provided under these rules.

(2)

Every nomination paper submitted under these rules shall contain a declaration specifying

(a)

the particular symbol which the candidate has chosen for his first preference out of the list of symbols prescribed under sub-rule (1);

(b)

two other symbols out of that list which he has chosen for his second and third preferences respectively:

Provided that the choice to be made by a candidate shall be subject to such restriction as the Deputy Commissioner or the Sub-Divisional Officer as the case may be, may think fit to impose in this regard; and

(c)

when more nomination papers than one are delivered by or on behalf of a candidate, the declaration to the symbols made in the first nomination paper be accepted and no other declaration as to symbols shall be taken into consideration.

(3)

The list of symbols prescribed in this behalf in Schedule 1 (A) and 1(8) shall be reserved for the candidates belonging to the recognised National Parties and the State Regional Parties respectively:

Provided that these reserved symbols shall be allotted only to the candidate formally sponsored by the respective political parties and that a candidate shall be deemed to have been set up by a political party if

(a)

he has made a declaration to that effect in his nomination paper;

(b)

he communicates in writing to the respective Deputy Commissioner or Sub-Divisional Officer to the effect not later than the time fixed for scrutiny of nomination paper; and

(c)

the said communication is signed by the President, Secretary or any other officer bearer of the party and the President, Secretary or such other office bearer is authorised by the party to send such communication in advance to the Deputy Commissioner or the Sub-Divisional Officer concerned and to the Election Commission.

22.

Filling and Scrutiny of Nomination Paper Form IIA and IIB.

(1)

Any person whose name appears in the list of voters of any of the Constituencies of a Gaon Panchayat or Zilla Parishad as published under Rule 11 of these rules and who is not disqualified under Section 111 of the Act, may be nominated as a candidate from the concerning Gaon Panchayat or Zilla Parishad Constituency as the case may be, for election as President of Gaon Panchayat, member of Gaon Panchayat and member of Anchalik Panchayat and for election as

member of Zilla Parishad from the Zilla Parishad Constituency in whose jurisdiction the Gaon Panchayat, Anchalik Panchayat or the Zilla Parishad as the case may falls, if he submits a nomination paper signed by any voter of the Constituency as proposer and signed by the candidate in token of his consent to stand as a candidate. The nomination paper shall be delivered either by the candidate or by his proposer to the officer authorised by the Deputy Commissioner or the Sub-Divisional Officer as the case may be, for the purpose who shall be present on the date and at the time and place notified for filling the same under sub-rule (3) of Rule 16 of these rules and shall also have a copy of the electoral Roll of the Gaon Panchayat or the Zilla Parishad Constituencies as the case may be with him. The nomination paper shall be in Form IIA or IIB as the case may be:

Provided that no person shall be nominated as a candidate for more than one Constituency of a Gaon Panchayat or a Zilla Parishad Constituency as the case be :

Provided further that a candidate may be nominated by more than one nomination paper.

(2)

The Officer as may be authorised under sub-rule (1), shall not be below the Gazetted rank and shall be appointed with prior approval of the State Election Commission. Such Officer shall-

(a)

examine the nomination papers on the date, time and place notified for the purpose under the Rule;

(b)

give the candidate or his proposer reasonable opportunity to examine the nomination paper and shall decide on the spot, the objections, if there be any, by summary enquiry. He may either on his own initiative or an objection raised, reject any nomination on any of the following grounds-

(i)

that the candidate is not qualified under the provisions of the act;

(ii)

that he is disqualified from being chosen to fill the office or that he is disqualified since requisite amount of security deposit has not been paid;

(iii)

that there has been failure to comply with any of the provisions of these Rules; and

(iv)

that the signature or thumb impression of the candidate or the proposer is not genuine:

For candidate other than Scheduled Castes or

Scheduled Tribes

For candidate belonging to Scheduled Castes/

Scheduled Tribes

Provided that nothing in sub-clauses (iii) and (iv) above shall be deemed to authorise the rejection of the nomination paper of any candidate on the ground of irregularity in respect of a nomination paper, if the candidate has duly nominated by means of other nomination paper in respect of which no irregularity has been committed.

23.

Security Money.

(1)

At the time or before the time of representation of the nomination paper, each candidate desiring to stand for election to any category of office shall deposit or cause to be deposited with the officer authorised to receive nomination paper, in cash the sum as shown below. A receipt in duplicate shall be obtained by the candidate in respect of the sum so deposited, from the officer so authorised to accept the deposit. The concerned officer shall have a Receipt Book for the purpose.

Table of Security Money

Category of office

Amount of Security Deposit

1

2

3

1. President of Gaon Panchayat

Rs. 500.00

Rs. 250.00

2. Member of Gaon Panchayat

Rs. 200.00

Rs. 100.00

3. Member of Anchalik Panchayat

Rs. 500.00

Rs. 250.00

4. Member of Zilla Parishad

Rs. 1000.00

Rs. 500.00

(2)

If no nomination paper is received within time appointed in this behalf in respect of person by whom the deposit referred to in sub-rule (1) above has been made, or the nomination paper of such candidate has been rejected if he withdraws his candidature in the manner provided under these rules, the money deposited shall be returned to the person concerned after obtaining due receipt thereof.

(3)

The balance of the sum collected under sub-rule (1), remaining after making payment under sub-rule (2) shall be kept in deposit in the Parishad fund or in any other manner as may be ordered by the State Election Commission for disbursement according to sub-rule (4), (5) and (6)

(4)

If a candidate is not elected and the number of votes polled in his favour does not exceed one eighth of the total number of valid votes polled, the deposit shall be forfeited to the Government.

(5)

The deposit made in respect of candidate whose deposit is not liable to be forfeited under sub-rule (4) shall be refunded to the person concerned as soon as may be, after the publication of the results of the election.

(6)

A deposit required to be refunded to any person under the preceding sub-rules shall, if such person is dead, be paid to his legal heirs.

24.

Withdrawal of Candidature.

(1)

Any candidate may withdraw his candidature by a notice in writing in duplicate signed by him and delivered to the Deputy Commissioner or the Sub-Divisional Officer as the case may be, or the Officer authorised by him in this behalf, on the date, time and place notified under clause (c) of sub-rule (1) of Rule 16 of these rules.

(2)

A candidate who has withdrawn his candidature shall not be allowed to cancel his withdrawal or to be renominated as a candidate for the same election.

25.

Procedure in contested and uncontested Election.

(1)

Immediately after expiry of the period of withdrawal of candidature, the Deputy Commissioner or the Sub-Divisional Officer as the case may be, or the officer authorised by him in this behalf, shall, in respect of every election, declare the names of the candidates whose nomination papers have been found valid.

(2)

If there is only one valid nomination in respect of a particular election, the Deputy Commissioner or the Sub-Divisional Officer as the case may be, or the officer authorised in this behalf, shall declare, such candidate 'to be duly elected from' the Constituency concerned.

(3)

If there are more than one valid nomination in respect of a particular election, a poll shall be held on the date notified for election under Rule 15 of these rules.

(4)

If there is no candidate in respect of a particular election, the Deputy Commissioner or the Sub-Divisional Officer as the case may be, shall take immediate steps for holding such election by issuing fresh notice under Rule 15 of these rules.

26.

Publication of Names of Contesting Candidates in Form IIIA or IIIB.

- The Deputy commissioner or the Sub-Divisional Officer as the case may be, shall cause to publish names of the contesting candidates in respect of a particular election in Form IIIA or IIIB as the case may be, under these rules in the language of the region in the office of the Gaon Panchayat, Anchalik Panchayat and Zilla Parishad and in such other place or places as may be considered necessary by him, at least 7 (seven) days before the date of election and at the polling station on the date of election. A copy of the same shall be furnished to the State Election Commission.

27.

Non-Attendance of Candidate or his Polling Agent.

- Where any act or thing is required or authorised by or under these rules to be done in the presence of the candidate or his Polling Agent, the non-attendance of any such candidate or his Agent at the time and place appointed for the purpose shall not, if the act or thing is otherwise duly done, invalidate the act or thing done.

28.

Ballot Papers Form I-A, I-B, I-C, and I-D.

(1)

Every Ballot Paper shall be in Form I-A, I-B, I-C and I-D respectively, appended to these rules and the particulars therein shall be recorded in the language of the region or such other languages as the State Election Commission may direct.

(2)

The Ballot paper shall contain the names of the candidates in order in which they appear in the list of candidates in Form IIIA and IIIB as the case may be, provided that Ballot paper for each category of office shall be different colours.

(3)

If two or more candidates bear the same name, they shall distinguished by the addition of their occupation or residence or any other manner, as the Deputy Commissioner or the Sub-Divisional Officer as the case may be, deem fit and proper.

(4)

The Ballot paper shall be serially numbered being printed or written on the front of the Ballot Paper.

29.

Polling Station or Polling Compartment.

(1)

If a poll is to be held, the Deputy Commissioner or the Sub-Divisional Officer as the case may be, shall select a suitable place for a polling station.

(2)

The Deputy Commissioner or the Sub-Divisional Officer as the case may be, shall establish in each polling station as many polling booths as he may consider necessary, and where more booths than one are so established he shall determine in relation to each booth the electors of the constituency who shall be admitted to cast their votes in those booths.

(3)

Every Polling Station shall contain such compartments (hereinafter referred to as polling compartments) as may be considered necessary by the Deputy Commissioner or the Sub-Divisional Officer as the case may be, in which electors can mark the ballot paper, screened from observation by any other person.

30.

Admission to polling Station.

(1)

The Presiding Officer shall regulate the number of electors to be admitted at a time inside the polling. station and shall exclude there from all other persons except-

(a)

the Polling Officers;

- (b)
the candidates and one appointed polling Agents of each candidate;
- (c)
persons authorised by the presiding officer;
- (d)
a child on arms accompanying an elector;
- (e)
a person accompanying blind or infirm electors who cannot move without help;
- (f)
such person as the Deputy Commissioner or Sub-Divisional Officer as the case may be, or the Presiding Officer may employ for conducting election under these rules.

(2)
The Presiding Officer shall close the polling station at the hour fixed in this behalf and shall not admit thereto any elector after that hour:

Provided that all electors present at the Polling Station before is closed, shall be entitled to cast their votes.

(3)
Any question that may arise as to whether an elector, for the purpose of the provision to sub-rule (2), be deemed to be present at the Polling Station before it is closed, shall be decided by the Presiding Officer and in this respect his decision shall be final.

31.
Preparation of the Ballot Boxes for the Poll.

(1)
The Presiding Officer at each polling station shall immediately before the commencement of the poll, allow the candidates and their appointed Agents who may be present at such station to inspect the ballot boxes to be used at the poll and demonstrate to them that these are empty.

(2)
The Presiding Officer shall thereafter secure and seal such ballot boxes in such manner that the slit for insertion on ballot papers remains open and shall allow the candidates or their appointed Agents who may be present, to affix, if they so desire, their own seal as well.

(3)
The seal used for securing a ballot box shall be fixed in such a manner that it shall not be possible to open the ballot box without breaking seal.

(4)
Every Ballot Box after having been secured and sealed in accordance with preceding sub-rules shall be placed for the receipt of ballot papers, in full view of the presiding officers, the candidates and their appointed Agents.

32.
Time for Poll.
- The time for polling shall be such as may be notified by the State Election Commission.

33.
Adjournment of Poll in Emergencies.
- If at an election, the proceedings at any polling station, are interrupted or obstructed by a riot or open violence, or if it is not possible to take the poll at any polling station on account of any natural calamity or any other sufficient cause, the Presiding Officer of such Polling Station shall announce the adjournment of the poll to a date to be notified by the State Election Commission later and shall immediately report to the Deputy Commissioner or the Sub-Divisional Officer as the case may be, the circumstances which compelled him to adjourn the poll. The Deputy Commissioner or the Sub-Divisional Officer as the case may be, shall announce the date of re-poll in the particulars Station, as may be fixed and notified by the State Election Commission. The Deputy Commissioner or the Sub-Divisional Officer as the case may be, shall arrange to publish such notification immediately at the office of the Gaon Panchayat or Anchalik Panchayat or the Zilla Parishad concerned and in such other places as may be considered necessary.

34.
Fresh Poll in the case of Destruction etc. or Ballot Boxes.

(1)

If at any election any ballot box used at the polling station, or at a place fixed for the poll is unlawfully taken out of the custody of the Presiding Officer or in any way tampered with or is accidentally or intentionally destroyed, lost or damaged and the Deputy Commissioner or the Sub-Divisional Officer as the case may be, is satisfied that in consequences thereof the result of the polling at that polling station or place cannot be ascertained he shall-

(a)

declare the polling at the polling station to be void;

(b)

report the matter forthwith to the State Election Commission;

(c) request the State Election Commission to appoint a day for fresh poll at such polling station.

(2)

The provisions of the Act and of any rules or orders made thereunder shall apply to the original poll.

35.

Identification of Electors.

(1)

As soon as the voter enters the polling station, the Presiding Officer or the Polling Officer authorised by him in this behalf, shall check the voter's name and other particulars with the relevant entry in the electoral Roll and call out the serial number, name and other particulars of the votes.

(2)

No objections as to the eligibility of a voter at the election shall be made by any person other than a candidate or his appointed Agent and such objection shall be made to the Presiding Officer who shall dispose of the objection summarily and his decisions thereon shall be final.

(3)

In deciding the right of a person to obtain a ballot paper, the Presiding Officer or the Polling Officer as the case may be, shall overlook merely clerical or printing error in any entry in the electoral roll, provided he is satisfied that such person is identical with the voter to whom such entry relates.

36.

Issue of Ballot Papers to Electors.

(1)

After the identity of the voter is established, the ballot paper shall be signed by the Presiding Officer or by the Polling Officer on its back and a mark shall be made by indelible ink on the left index of the electors and then the ballot paper shall be issued to the elector.

(2)

Immediately before the issue of ballot paper to a voter, it shall be marked on the back with the official mark and an indication shall be placed in a copy of the electoral roll set apart for the purpose thereafter, in these rules referred to as the marked copy of the electoral roll, by the Presiding Officer against the name of the voter to denote that he has received a ballot paper.

(3)

The serial number of ballot paper shall be noted against the name of the voter in the marked copy of the electoral roll.

37.

Casting of Votes.

(1)

The voter, on receiving the ballot paper shall forthwith proceed to one of the polling compartments and there make a mark on the ballot paper as near the symbol of the candidate for whom he intends to vote with stamp provided and fold the same so as to ensure secrecy of his vote. Thereafter, the voter shall come out of the polling compartment with the folded ballot paper and insert the ballot paper so folded into the ballot box in the presence of the Presiding Officer.

(2)

Every voter shall cast his vote without delay on his part and shall quit the polling station as soon as he has inserted the ballot paper into the ballot box.

(3)

No voter shall be allowed to enter a polling compartment when another voter is inside it.

38.

Recording Votes of Illiterate and Infirm Voters.

(1)

if owing to illiteracy or blindness or other physical infirmity, a voter is unable to read the ballot paper or make mark thereon and if the voter so desires, the Presiding Officer shall record the vote in the ballot paper in accordance with the wishes of the voter and fold it up so as to ensure secrecy of the vote. The voter then himself or with the assistance of the Presiding Officer shall insert the ballot paper in the ballot box.

(2)

While acting under this rule the Presiding Officer shall maintain utmost secrecy.

39.

Instructions for recording votes to be explained by the Presiding Officer when Requested.

- The Presiding Officer at a Polling Station shall, when so requested by a voter, explain to him the procedures for casting of the vote in the ballot paper.

40.

Return of Ballot Paper by an Elector.

(1)

if an elector decides not to use a ballot paper after he had obtained the same, he shall return it to the Presiding Officer.

(2)

Such ballot paper as referred to in sub-rule (1) shall be marked as 'Cancelled' and kept in a cover set apart for the purpose and the Presiding Officer shall keep a record of all such ballot papers.

41.

Spoiled Ballot Paper.

- A voter who has inadvertently deals with his ballot paper in such a manner that it can not conveniently be used as such, may, on delivering it to the Presiding Officer and satisfying him of the inadvertence, obtain another ballot paper in place of this spoiled ballot paper and such spoiled ballot paper together with the counterfoil shall be marked by the Presiding Officer as 'cancelled'.

42.

Presiding Officer's Entry into the Polling Compartment.

(1)

If the Presiding Officer has reason to suspect that a voter who has entered the polling compartment and remained inside unduly for a long-time, he shall enter the polling compartment and take such step as may be necessary to ensure the smooth and prompt progress of the poll.

(2)

Whenever the Presiding Officer enters the polling compartment, he shall be accompanied by such candidates or their appointed agents, as may be desired by him in this behalf.

43.

Delivery of Ballot Boxes and other Materials of Election to the Deputy Commissioner or the Sub-Divisional Officer, as the case may be.

(1)

The Presiding Officer shall, at the close of the poll, satisfy himself in the presence of the candidates or their polling Agents, if any that the seals affixed to the ballot boxes are intact. He shall then close the slit used for insertion of ballot papers in each ballot box by pasting a piece of paper in the slit and tying up the ballot box with a string to the slit and secure in such a manner that it shall not be possible to open the slit without tampering the piece of paper or breaking the seal. The Presiding Officer shall duly sign such paper and shall allow the candidates or their appointed Agents, as the case may be, to put their signature thereon.

(2)

After closing the slit of each ballot box used for the poll in the manner prescribed under sub-rule (1) the Presiding Officer shall wrap it with a thick paper and secure the same by way of pasting and binding with rope. He shall then paste identification slip on the ballot box noting thereon the serial number and name of the Polling Station and the election to which it relates and the number of box used in each election.

(3)

The Presiding Officer shall then make up into separate packet-

- (a) unused ballot Papers separately for the election of Gaon Panchayat President, Gaon Panchayat member and Anchalik Panchayat member and Zilla Parishad member with the accounts thereof;
- (b) the cancelled and spoiled ballot papers for each election;
- (c) the marked copy or copies of the electoral roll;
- (d) any other papers as may be directed by the Deputy Commissioner or the Sub-Divisional Officer as the case may be, to be kept in sealed packets and note thereon a description of its contents, the election to which it relates and the serial number and the name of the polling station.

(4) The Presiding Officer shall then prepare a list of the used ballot boxes and sealed packets in duplicate and note thereon the serial number and name of Polling Station and put his signature thereon.

(5) The Presiding Officer shall immediately after preparation of the ballot boxes under sub-rule (1) and (2) and sealed packets under sub-rule (3) and the list under sub-rule (4) shall deliver the same to the Deputy Commissioner or the Sub-Divisional Officer, as the case may be, or any other Officer authorised by him in this behalf, at such place as may be directed by him.

(6) On receiving the ballot boxes, the sealed packets and the list under sub-rule (5), the Deputy Commissioner or the Sub-Divisional Officer as the case may be, or any office authorised by him in his behalf, shall endorse his receipt on the duplicate copy of the list after due verification and return it to the Presiding Officer. He shall provide safe custody of the ballot boxes and sealed packets along with the list so received from the Presiding Officer.

44.

Counting of Votes and Declaration of Results of the Election.

(1) The Deputy Commissioner or the Sub-Divisional Officer as the case may be, shall arrange counting of votes on such day and at such hours and place as he may consider necessary for this purpose in respect of every election. He shall authorise one Officer for counting the votes in respect of the election of Gaon Panchayat President, Gaon Panchayat member, and Anchalik Panchayat member and Zilla Parishad members separately. Such officer may be assisted by such other officers as may be appointed by the Deputy Commissioner or the Sub-Divisional Officer as the case may be.

(2) On the date, hours and place fixed under sub-rule (1), the officers so authorised by the Deputy Commissioner or the Sub-Divisional Officer or as the case may be, shall take up counting of votes in respect of the election as assigned to each of them. Each such officer shall collect the ballot box or boxes of the particular election in order of the serial-number of the polling station one by one and satisfy himself in the presence of the candidates or their Agents, if any, duly appointed by the candidate for this purpose, that the seal affixed to such ballot box is intact. He shall then open the ballot boxes, take out the ballot papers, sort them out against each candidate and count the same in presence of the candidate or their Agents, if any.

(3) The officer shall reject a ballot paper on any of the following conditions

- (a) if there is no signature of the Presiding Officer or the Polling Officer on the backside of the ballot papers;
- (b) if the cross mark is placed against the names and symbols of more than one candidate;
- (c) if the ballot paper is without the cross mark;
- (d) if the cross mark is so placed as to make it doubtful for which candidate the vote is intended to be given;

(e)
when there is wrong mark or writing on the ballot paper by which the voter can be identified;

(f)
if it is spurious ballot paper;

(g)
if it has been so damaged or mutilated that its identity as a genuine ballot paper cannot be established.

(4)
Before rejecting a ballot paper under sub-rule (3), the Officer authorised by the Deputy Commissioner or the Sub-Divisional Officer as the case may be, shall allow such of the candidates or their Agents as may be present, to inspect such ballot paper but shall not allow them to handle it or any other ballot paper. He shall endorse the letter 'R' on every ballot paper rejected by him.

(5)
After counting each ballot paper not rejected by him, he shall keep in record the valid vote polled to each candidate in a particular election against every polling station.

(6)
The record prepared under sub-rule (5) for the election of the Gaon Panchayat, President, Member of Gaon Panchayat, member of Anchalik Panchayat and the member of Zilla Parishad by the respective officer, shall be delivered to the Deputy Commissioner or the Sub-Divisional Officer as the case may be, immediately after the counting is over, such records shall be retained in the safe custody of the Deputy Commissioner or the Sub-Divisional Officer as the case may be, for a year and shall then, unless otherwise directed by the State Election Commission, be destroyed.

(7)
On receipt of the records under sub-rule (6), the Deputy Commissioner or the Sub-Divisional Officer as the case may be, shall declare the candidate who has received the highest number of votes in respect of every election, to have been elected to that office or seat and publish a notice at his office stating the name of persons so declared, as the President and member of the Gaon Panchayat member of the Anchalik Panchayat and member of the Zilla Parishad as the case may be, and shall forward a copy to the State Election Commission for notification.

45.
Equality of Votes.

(1)
If after the counting of votes it appears that two candidates of whom only one is to be declared elected, having received equal number of votes, the Deputy Commissioner or the Sub-Divisional Officer as the case may be, or any Officer authorised by him in this behalf, shall decide which of the two shall be declared elected by tossing up a coin in presence of such candidates. Each candidate shall be, assigned one side of the coin by him or by the Officer just before the toss. The candidate whose side appears visible at the top of the coin after it has fallen flat on any plain ground or table, shall be declared elected.

(2)
If after counting the votes it appears that more than two candidates have received equal number of votes, the Deputy Commissioner or the Sub-Divisional Officer as the case may be, or any Officer authorised by him, shall cause a draw lot in presence of the candidates or their Agents in the following manner

(i)
the names of the candidates having equal number of votes shall be written in separate pieces of paper of the same size and those pieces of paper shall be rolled into separate balls and placed together in a bag. Separate pieces of blank paper of the same size corresponding to the number of pieces placed in the bag, shall be rolled in separate balls and placed together in the same bag, and the bag shall be well shaken. The Deputy Commissioner or the Sub-Divisional Officer as the case may be, or the Officer authorized by him, shall then brings out one paper ball from the bag and open the same. If it is blank, it shall be thrown away and the process shall be continued till the name of a candidate appears in paper ball. The candidate whose name so appears first, shall be declared elected.

46.
Election of Vice-President of Gaon Panchayat.

(1)
The Deputy Commissioner or the Sub-Divisional Officer as the case may be, shall call the first meeting of a Gaon

Panchayat under sub-section (3) of Section 6 of the Act, by fixing a date and by causing a written notice specifying the date, time and place of the meeting, to be served on each elected member and the President of the Gaon Panchayat concerned at least seven days before the date so fixed. Such meeting shall be preside over by an Officer authorised by the Deputy Commissioner or the Sub-Divisional Officer as the case may be and such Officer shall not be entitled to vote.

(2)

The Officer authorised in sub-rule (1) shall administer the oath of affirmation to the President of the Gaon Panchayat as under Section 134 of the Act:

Provided that the President after taking his Oath of affirmation, shall also administer the Oath to the member of the Gaon Panchayat concerned, as under Section 134 of the Act.

(3)

If one third or more of the total number of members called to the meeting under sub-rule (1) are not present within an hour of the time fixed for the meeting, the Deputy Commissioner or the Sub-Divisional Officer as the case may be, or the Officer empowered in this behalf, shall adjourn the meeting pending fixation of another date by the Deputy Commissioner or the Sub-Divisional Officer as the case may be, not later than fifteen days of such meeting.

(4)

The Officer authorised in sub-rule (1) on completion of the business of oath taking, shall call upon the members present to propose and second name of persons from amongst the members of the Gaon Panchayat present for election of a Vice-President of the Gaon Panchayat as under sub-section (3) of Section 6 of the Act.

(5)

if only one candidate has been proposed and seconded, the Officer- authorised under sub-rule (1), shall thereupon declare him to be duly elected as Vice-President of the Gaon Panchayat.

(6)

If, more than one candidates have been proposed and seconded and have agreed to stand for election, the Officer authorised under sub-rule (1), shall conduct the election in the following manner

(i)

the Officer as under sub-rule (1), shall cause to prepare as many ballot papers as there are members present, in the FORM IV in the language of the region and whereupon the names of candidates shall be written line wise in the order in which the proposals were made;

(ii)

the officer authorised under sub-rule (1), shall allow the members present to inspect the ballot box to be used for the purpose and thereafter secure and seal such ballot box and place it in front of him. He shall provide a compartment screened from observation by any other person in which the member can mark the ballot paper;

(iii)

the officer authorised under sub-rule (1), shall thereafter handover one such ballot paper after putting his signature on the back of each ballot paper. Then he will instruct the members to enter the screened compartment one by one, put a cross mark against the name of the candidate of his choice in the ballot paper supplied and fold in and then insert it into the ballot box kept in front of him; and

(iv)

if, a member is unable to written or physically incapacitated from voting, the Officer authorised under sub-rule (1), shall at the request of the member take him to the screened compartment, ascertain his choice and accordingly mark the ballot paper and fold it and then insert it into the ballot box. The Officer shall cause such arrangement to be made as will ensure secrecy of the ballot paper.

(7)

Immediately after the voting is over, the officer authorised under sub-rule (1), shall open the ballot box, take out the ballot papers there from count them and record the number thereof in a. statement. A ballot paper shall be invalid; if-

(a)

it bears the signature of the voter or contain any word or visible representation by which he can be identified; or

(b)

the cross mark is placed against more than one name; or

(c) the cross mark is so placed thereon as to make it doubtful for which candidate the vote was intended to be given; or

(d)

no cross mark is placed thereon; or

(e)

it does not bear the signature of the Officer "authorised under sub-rule (1), as prescribed under clause (iii) or sub-rule (6).

(8)

After completion of counting and recording of votes received by each candidate, the Officer authorised under sub-rule (1), shall declare the candidate who has secured the highest number of votes to be duly elected Vice-President of the Gaon Panchayat. In case of equality of votes between two or more candidates, declaration of election shall be given by the said Officer in the manner prescribed under Rule 45 of these rules.

(9)

Declaration as to the election of the Vice-President of the Gaon Panchayat under sub-rule (8) by the Officer authorised, shall be final.

47.

Submission of list of President, Vice-President and Members of Gaon Panchayat for Notification.

- The Deputy Commissioner or the Sub-Divisional Officer as the case may be, shall submit a list indicating the names and respective addresses of the persons elected as the President, the Vice-President and the members of each Gaon Panchayat, Anchalik Panchayat wise to the State Election Commission.

48.

Election of President and Vice-President of Anchalik Panchayat.

(1)

The Deputy Commissioner or the Officer authorised by him in this behalf as under, sub-section (1) of Section 37 of the Act, shall as soon as possible after the completion of election as under Section 32 of the Act, convene the first meeting of the Anchalik Panchayat comprising the members as under subsection (1) of Section 32 of the Act, by fixing a date, time and place and specifying the purpose and by causing a written notice to be served on each of the said members of the Anchalik Panchayat at least seven days before the date so fixed. Such meeting shall be presided over as under sub-section (1) of Section 37 of the Act, and such Officer shall not be entitled to vote.

(2)

The Officer as under sub-rule (1) shall administer an oath of affirmation as under Section 134 of the Act, to the members present before commencement of the meeting.

(3)

If one third of the total number of members as under subsection (1) of Section 32 of the Act, called to the meeting under sub-rule (1) are not present within an hour of the time fixed for the meeting, the Officer as under sub-rule (1) shall adjourn the meeting pending fixation of another date by the Deputy Commissioner not later than fifteen days from the date of such meeting.

(4)

The Officer as under sub-rule (1) shall, immediately after oath taking as under sub-rule (2) of sub-section (1) of Section 32 of the Act, to propose and second names of persons from amongst themselves for election of a President and a Vice-President of the

Anchalik Panchayat. The said Officer shall record the name of each candidate proposed for different offices and shall reject any proposal if the candidate refuses to stand for election.

(5)

If, only one candidate is proposed and seconded against either of the offices, the officer as under sub-rule (1), shall thereupon declare him to be duly elected as the President or the Vice-President as the case may be, of the Anchalik Panchayat.

(6)

If, more than one candidate are proposed and seconded against either of the offices, the Officer as under sub-rule (1), shall conduct the election in the following manner-

(i)

the Officer as under sub-rule (1), shall cause to prepare as many ballot papers separately for each of the offices as there are members present as under clause (a) of sub-section (1) of Section 32 of the Act, in FORM-IV appended herewith in the language of the region and whereupon the names of the candidates shall be written line-wise in the order in which

the proposals were made;

(ii)

the Officer as under sub-rule (1), shall allow the members present as under clause (i) of sub-rule (6) to inspect the two separate ballot boxes to be used for the purpose and thereafter secure and seal such ballot boxes and place them before him. The Officer shall provide a compartment screened from observation by other persons in which the members can mark the ballot paper;

(iii)

the Officer as under sub-rule (1), shall thereafter handover one such ballot paper as prepared under clause (i) of sub-rule (6) to each of the members present after putting his signature on the back of each ballot paper: He shall then instruct the members to enter the compartment one by one and put a cross mark against the name of the candidate of his choice in the ballot paper supplied, fold it and then insert it into the respective ballot box kept in front of the Officer; and

(iv)

if, a member is unable to write or physically incapacitated from voting, the Officer under sub-rule (1) shall, at the request of the member, take him to the screened compartment, ascertain his choice and accordingly mark the ballot paper, fold it and then insert it into the concerned ballot box. The said Officer shall cause such arrangement to be made as will ensure secrecy of the ballot paper.

(7)

Immediately after the voting is over, the Officer as under sub-rule (1), shall open the ballot boxes one by one, take out the ballot papers there from count them and record the number thereof in a statement. A ballot paper shall be invalid on the grounds as under clauses (a), (b) and (c), (d) and (e) of sub-rule (7) of the Rule 46 of these rules.

(8)

The Officer as under sub-rule (1) shall, after completion of counting and recording of votes received by each candidate for either of the Officer, declare the candidate who has secured highest number of votes against respective offices, to be duly elected as the President and the Vice-President of the Anchalik Panchayat concerned.

(9)

In case of equality of votes in either of the said election, declaration of election shall be given by the Officer as under sub-rule (1), in the manner prescribed under Rule 45.

(10)

Declaration as to the election to the Offices of the President and Vice-President of the Anchalik Panchayat by the Officer as under sub-rule (1) shall be final.

49.

Submission of the List of President and Vice-President and Members of the Anchalik Panchayat.

- Soon after the election is over, the Deputy Commissioner shall submit a list to the State Election Commission indicating the names and respective addresses of the persons elected as the President, Vice-President and members of each Anchalik Panchayat district-wise for notification.

50.

Election of President and Vice-President of Zilla Parishad.

(1)

The Deputy Commissioner, as under sub-section (1) of Section 70 of the Act, shall, as soon as possible after the completion of election as under sub-section (1) of Section 65 of the Act, convene the first meeting of the Zilla Parishad comprising the members as under sub-section (1) of section 65 of the Act, by fixing a date, time and place and specifying the purpose and the causing a written notice to be served on each of the members of the Zilla Parishad at least seven days before the date so fixed. Such meeting shall be presided over by the Deputy Commissioner concerned and the Deputy Commissioner shall not be entitled to vote.

(2)

The Deputy Commissioner as under sub-rule (1) shall administer an oath of affirmation as under Section 134 of the Act, to all the members present before the commencement of the meeting.

(3)

If, one third of the total number of members as under sub-section (1) of Section 65 of the Act, called to the meeting as under sub-rule (1), are not present within an hour of the time fixed for the meeting, the Deputy Commissioner shall

adjourn the meeting pending fixation of another date by the Deputy Commissioner not later than fifteen days from the date of such meeting.

(4)

The Deputy Commissioner shall immediately after oath taking as under sub-rule (2), call upon the members present as under sub-section (1) of Section 65 of the Act, to propose and second names of persons from amongst themselves as under sub-section (1) of Section 70 of the Act, for election of a President and Vice-President of the Zilla Parishad. The Deputy Commissioner presiding over the meeting shall record the name of each candidate proposed for different offices and shall reject any proposal if, the candidate refuses to stand for election.

(5)

If, only one candidate is proposed and seconded against each of the offices as under sub-rule (1), shall thereupon be declared to be duly elected as the President or the Vice-President as the case may be, of the Zilla Parishad.

(6)

If, more than one candidate are proposed and seconded against each of the offices, the Deputy Commissioner shall conduct the election in the following manner-

(i)

the Deputy Commissioner presiding over the meeting shall cause to prepare as many ballot papers separately for each of the offices as there are members present as under sub-section (1) of Section 70 of the Act, in FORM IV appended herewith, in the language of the region and whereupon the names of the candidates shall be written line-wise in the order in which the proposals were made;

(ii)

the Deputy Commissioner presiding over the meeting, shall allow the members as under clause (i) above, to inspect the two separate ballot boxes to be used for the purpose and thereafter secure and seal such ballot boxes and place them before him. The Deputy Commissioner shall provide a compartment screened from observation by any other persons in which the members can mark the ballot paper;

(iii)

the Deputy Commissioner shall thereafter handover one such ballot paper as prepared under clause (i) to each of the members present after putting his signature on the back of each ballot paper. He shall then instruct the members to enter the compartment one by one and put a cross mark against the name of the candidate of his choice in the ballot paper supplied, fold it and then insert it into the respective ballot box kept in front of him; and

(iv)

if, a member is unable to write or physically incapacitated from voting, the Deputy Commissioner shall, at the request of the member, take him to the screened compartment, ascertain his choice and accordingly mark the ballot paper, fold it and then insert it in the concerned ballot box. The Deputy Commissioner shall ensure secrecy of the ballot paper.

(7)

Immediately after the voting is over, the Deputy Commissioner shall open the ballot boxes one by one, take out the ballot papers therefrom, count them and record the number thereof in two separate statements office-wise. A ballot paper shall be invalid on the grounds as under clauses (a), (b), (c), (d) and (e) of sub-rule (7) of Rule 46.

(8)

The Deputy Commissioner shall, after completion of counting and recording of votes received by each candidates for each of the offices, declare the candidate who has secured highest number of votes against respective offices to be duly elected as the President and Vice-President of the Zilla Parishad concerned.

(9)

In case of equality of votes in either of the said election, declaration of election shall be given by the Deputy Commissioner in the manner prescribed under Rule 45 of these rules.

(10)

Declaration as to the election to the offices of the President and Vice-President of the Zilla Parishad by the Deputy Commissioner shall be final provided any dispute arises in the said election.

(11)

In case of filling up of any vacancy in the offices of the President and Vice-President of the Zilla Parishad and the determination of disputes relating to such election as under subsection (2) of Section 70 of the Act, shall be disposed off by the Panchayat Election Tribunal as under Section 127 of the Act.

51.

Submission of the List of the President and the Vice President and the Member of the Zilla Parishad.

- Soon after the election is over as under Rule 50, the Deputy Commissioner shall submit a list to the State Election Commission indicating the names and respective addresses of the person elected as the President, the Vice-President and the members of the Zilla Parishad for notification.

52.

Dissolving of Mahkuma Parishad.

- As soon as the new Zilla Parishad is constituted in the first meeting of the Zilla Parishad as under sub-rules (1) and (2) of Rule 50, the old Mahkuma Parishad, if any, shall automatically stand dissolved.

53.

Vacancy in the Offices of the President, the Vice-President and the Member of Gaon Panchayat, Anchalik Panchayat or Zilla Parishad.

(1)

In the event of occurring vacancy in the offices of either of the President or the Vice-President or the members, the Secretary in respect of Gaon Panchayat, the Executive Officer in respect of Anchalik Panchayat and the Chief Executive Officer in respect of Zilla Parishad shall, immediately inform the Deputy Commissioner or the Sub-Divisional Officer concerned as the case may be, with details and the Deputy Commissioner or the Sub-Divisional Officer concerned as the case may be, shall report the matter to the State Election Commission with his comment for necessary action.

(2)

To fill up the casual vacancy of the office of the President of Gaon Panchayat, these rules for Panchayat election shall apply.

(3)

To fill up casual vacancy of the offices of Vice-President of Gaon Panchayat or the Anchalik Panchayat or the Zilla Parishad, the manners prescribed under sub-rule (1) to (8) of Rule 46 in respect of Gaon Panchayat and sub-rule (1) to (9) of Rule 48 in respect of Anchalik Panchayat and sub-rule (1) to (9) of Rule 50 in respect of Zilla Parishad shall apply.

54.

Other matters not provided in these Rules.

- As regard other matters not provided in the Assam Panchayat (Constitution) Rules, 1995, the matters shall be guided by the relevant Rules under the Representation of the Peoples Act, 1951.

55.

Cost of the Election.

- The expenses incurred in connection with holding the elections under these Rules shall be met in such manner as may be decided by the State Government from time to time.

56.

Constitution of Standing Committees.

- The Gaon Panchayat and the Anchalik Panchayat and the Zilla Parishad shall constitute their respective Standing Committees within ten days from the date of their first meeting in the manner prescribed under Section 22, Section 52 and Section 81 and Section 82 of the Act, respectively.

57.

Removal of Difficulties.

- If any difficulty arises in giving effect to the provision of these rules, the Government may take such necessary action so long as these are not inconsistent with the main objective and provision of the Act/these Rules.

58.

Repeal.

- With the coming into force of these rules, the Assam Panchayati Raj (Constitution) Rules, 1990 stands repealed.

59.

The State Election Commission may formulate Model Code of Conduct for the guidance of political parties and candidates in consultation with the Political parties.

60.

The State Election Commission may prescribe limit of expenditure to be incurred by the candidates in contesting the election. The candidates shall submit the statement of expenditure duly certified to the State Election Commission within

a period of 60 (sixty) days from the date of his declaration of results.

61.

(1)

As per provision of Section 70(A) (1) of the Assam panchayat Act, 1994 the State Government of Assam shall notify the names of Zilla Parishad reserved for Scheduled Caste and Scheduled Tribes on the basis of the number of the offices of the President/ Vice-President of Zilla- Parishad to be reserved for the Scheduled Castes or Scheduled Tribes, as the case may be, under sub-section (1) of Section 70 and shall bear the same proportion to the total number of such offices in the Zilla Parishads of the State as the population of the Scheduled Castes or Scheduled Tribes in the State to the total population of the State. The State Government shall determine the offices of the President and, the Vice-President to be so reserved, while calculating the number of offices to be so reserved if the result bears any fraction which is 5 or more, it shall be rounded Off to the next higher integer and if it is less than 5 then it shall be ignored. In selecting the Zilla Parishad for reservation of the office of the President/Vice-President for the Scheduled Castes and Scheduled Tribes the Zilla Parishad with the highest number of Scheduled Castes or the Scheduled Tribes population as the case may be, where the election is held shall be reserved first and so in order of such population in the descending orders: Provided that such reservation of the offices of President/Vice-President shall be allotted by rotation among the Zilla Parishad having Scheduled Castes and Scheduled Tribes population in the descending order of such population as provided herein above.

(2)

Out of the total offices of President/Vice-President to be reserved for the Scheduled Castes or Scheduled Tribes, as the case may be, in the State, not less than, 33% of such offices shall be reserved for women of the Scheduled Castes and Scheduled Tribes. The Zilla Parishads to be so reserved for women of the Scheduled Caste and Scheduled Tribes it shall be determined by drawing of Lot by an officer authorized by the State Government in this behalf and shall be allotted by rotation.

(3)

The Zilla Parishad reserved for President/Vice-President under sub-section (1) of Section 70-A of the Assam Panchayat Act, 1994 shall not be less than 33% of the total number of Zilla Parishads in the State including the seats reserved for women of the Scheduled Castes/the Scheduled Tribes and such reservation shall be determined by the officer authorised by the Government as aforesaid, by drawing of Lot and shall be allotted by rotation.

The notice for reservation under this sub-rule shall be published just after declaration of result of the Election of the Zilla Parishad. The copies of such notice shall be published in the Official Gazette / State Election Commission offices and Deputy Commissioner Offices/ Zilla Parishad offices and in local News Papers for wide Publicity:

Provided further that office of the Vice-President of Zilla Parishad shall be reserved in the same manner as prescribed for reservation of the office of the President of Zilla Parishad as laid down under Rule 8(2) of these Rules:

Provided that office of the Vice-President of Zilla Parishad shall not be reserved for the person belonging to Scheduled Castes or Scheduled Tribes in which the office of the President of Zilla Parishad has already been reserved for Scheduled Castes or Scheduled Tribes community. Such reservation of the offices of Vice-President of Zilla

Parishad shall be done with the highest number of Scheduled Casts or Scheduled Tribes population as the case may be, in descending order after excluding the Zilla Parishad in which the office of the President has already being reserved on the basis of highest number of Scheduled Castes or Scheduled Tribes population.

62.

[Conditions and procedure of disqualification under sub-section (2) of section 111 of the Act.

[Inserted by Notification No. PDA.206/2007Pt-II/107, dated 31.10.2018 (w.e.f. 19.3.1996).]

(1)

(a)

Subject to the provisions of the Act, at the time of filing of nominations, candidates shall furnish affidavit that he / she has not more than two living children from a single or multiple partners;

(b)

The State Government or Concerned District Authority shall remove any President, Vice-President or Member of Zilla Parishad, Anchalik Panchayat and Gaon Panchayat if he or she is having two or more than two children from single or multiple partners prior to the date of commencement of the Act i.e. 19/03/2018 and gives birth to an additional child thereafter ;

(c)

If any Panchayati Raj Institution (PRI) member divorces his wife after assuming office and subsequently his separated wife gives birth to a third child without remarrying with another person within a period of nine months from the date of separation, he shall be removed from his office with due procedure;

(d)

If the second child birth are twins, then he / she shall not be removed from membership of Panchayati Raj Institutions (PRI);

(e)

If the first child birth are triplets, then he/she shall not be removed from membership of Panchayati Raj Institutions (PM);

(f)

The Gaon Panchayat Secretary on receipt of information of such additional child birth in respect of President, Vice-President, Member of the Gaon Panchayat shall inform the matter to the concerned Block Development Officer who in turn shall inform the concerned Deputy Commissioner through Chief Executive Officer, Zilla Parishad. The concerned Deputy Commissioner shall examine the matter and on establishment of fact, shall remove the President, Vice-President, Member of the Gaon Panchayat concerned accordingly under intimation to the State Government as well as Assam State Election Commission;

(g)

The Executive Officer of Anchalik Panchayat on receipt of information of such additional child birth in respect, of President, Vice-President, Member of the Anchalik Panchayat shall inform the matter to the concerned Deputy Commissioner through the Chief Executive Officer, Zilla Parishad. The concerned Deputy Commissioner shall examine the matter and on establishment of fact, shall remove the President, Vice-President, Member concerned of Anchalik Panchayat accordingly and inform the matter to the State Government in Panchayat and Rural Development Department as well as Assam State Election Commission;

(h)

The concerned Chief Executive Officer on receipt of information of such additional child birth in respect of President, Vice-President, Member of the Zilla Parishad shall inform the matter to the State Government through concerned Deputy Commissioner for removal of the President, Vice-President, Member concerned and accordingly, on establishment of such fact, the State Government in Panchayat and Rural Development Department shall remove the President, Vice-President, Member concerned of the Zilla Parishad under intimation to the Assam State Election Commission .

(2)

Subject to the provisions of the Act, at the time of filing of nominations, candidates shall furnish affidavit regarding their required Educational Qualifications along with true copy of such Certificates and also should produce the original Certificates before the concerned Authorised Officers failing which, concerned candidates shall be disqualified.

(3)

(a)

Subject to the provisions of the Act, the availability of a functional sanitary toilet in his/her residence shall be part of the affidavit at the time of filing nominations.

Explanation. - "Functional sanitary toilet" means the toilet facilities that protect human health by preventing contamination of the environment with human faecal waste. A toilet is a piece of hardware used for the collection or disposal of human urine and faeces. In other words, "Toilets are sanitation facilities at the user interface that allow the safe and convenient urination and defecation".

(b)

The State Government or Concerned District Authority shall remove any President, Vice-President or Member of Zilla Parishad, Anchalik Panchayat and Gaon Panchayat if he or she does not have a functional sanitary toilet in his/her residence.

(c)

The Gaon Panchayat Secretary on receipt of information of having no functional sanitary toilet in the residence of President, Vice-President, Member of the Gaon Panchayat shall inform the matter to the concerned Block Development Officer who in turn shall inform the Deputy Commissioner through the Chief Executive Officer, Zilla Parishad. The Deputy Commissioner shall examine the matter and on establishment of fact, shall remove the President, Vice-President, Member concerned of the Gaon Panchayat accordingly under intimation to the State Government as

well as Assam State Election Commission.

(d)

The Executive Officer of Anchalik Panchayat on receipt of information of having no functional sanitary toilet in the residence of President, Vice-President, Member of the Anchalik Panchayat shall inform the matter to the concerned Deputy Commissioner through the Chief Executive Officer, Zilla Parishad. The Deputy Commissioner shall examine the matter and on establishment of such fact, shall remove the President, Vice-President, Member of the concerned Anchalik Panchayat accordingly and inform the matter to the State Government in Panchayat and Rural Development Department as well as Assam State Election Commission.

(e)

The concerned Chief Executive Officer on receipt of information of having no functional sanitary toilet in the residence of President, Vice-President, Member of the Zilla Parishad shall inform the matter to the State Government for removal of the President, Vice-President, Member concerned of the Zilla Parishad and accordingly, on establishment of such fact, State Government in Panchayat and Rural Development Department shall remove the President, Vice-President, Member concerned of the Zilla Parishad under intimation to the Assam State Election Commission.]

Form I-A

Ballot Paper

(Rule-28)

Election of Member Gaon Panchayat by the voters of Constituency.

Serial No.

Sl. No.

Name of Candidates

Symbol

Cross Mark

1

2

3

4

Instruction:

1. Number of person to be elected-One.

2. You have only one vote.

3. You must not vote for more than one candidate.

4. You must to vote by putting a cross (x) mark in column No. 4 against the symbol printed opposite the name of the candidate for whom you wish to vote.

Form I-B

Ballot Paper

(Rule-28)

Election of President to Gaon Panchayat by the voters of all the Constituency of the Gaon Panchayat.

Serial No.

Sl. No.

Name of Candidates

Symbol

Cross Mark

1

2

3

4

Instruction:

1. Number of person to be elected-One.

2. You have only one vote.

3. You must not vote for more than one candidate.

4. You are to vote by putting a cross (x) mark in column No. 4 against the symbol printed opposite the name of the candidate for whom you wish to vote.

Form I-C

Ballot Paper

(Rule-28)

Election of Member to Anchalik Panchayat by the voters of all the Constituency of Gaon Panchayat.

Serial No.

Sl. No.

Name of Candidates

Symbol

Cross Mark

1

2

3

4

Instruction:

1. Number of person to be elected-One.

2. You have only one vote.

3. You must not vote for more than one candidate.

4. You must to vote by putting a cross (x) mark in column No. 4 against the symbol printed opposite the name of the candidate for whom you wish to vote.

Form I-D

Ballot Paper

(Rule-28)

Election of President to Zilla Parishad by the voters of all the Constituency No..... of the District of

Sl. No.

Name of Candidates

Symbol

Cross Mark

1

2

3

4

Instruction:

1. Number of person to be elected-One.

2. You have only one vote.

3. You must not vote for more than one candidate.

4. You are to vote by putting a cross (x) mark in column No. 4 against the symbol printed opposite the name of the candidate for whom you wish to vote.

Form II-A

[Sub-Rule (1) of Rule-22]

[Nomination Paper for Election of Gaon Panchayat Member]

I, hereby nominate shri/Smti as a candidate for election of Member of Gaon Panchayat from Constituency of Gaon Panchayat.

Candidate name

His/her postal Address

.....

His/her name is entered in serial number of the Electoral Roll of Village in Constituency of the Gaon Panchayat.

My name is entered in the serial number of the Electoral Roll of village in Constituency of the Gaon Panchayat.

Signature of thumb/Impression of the proposer.

Date

1. I, the above mentioned candidate, assent to this nomination. I declare that the symbol I have chosen in order of preferences are (1) (2) (3)

2. I am Independent candidate and the symbols I have chosen in the order of preference are (1) (2) (3)

3. I am an officially sponsored candidate of a National/State party recognised by the Election Commission of India having its symbol.

I further declare that I am a member of the Tribe/Castes which is a Scheduled Tribe/Caste in relation to the State of Assam under the Constitution of India.

The Security Money amounting to Rs. (in words) has been deposited vide Receipt No. of a copy of which is enclosed herewith.

Signature of thumb

Date

Impression of the Candidate.

(To be filled up by the officer authorised)

Serial Number of nomination paper

This nomination paper was delivered to me at (place) at (Hours) on (Date) by the candidate/proposer.

Signature of the Officer.

(Score out the paragraph or word not applicable)

(Decision of the officer accepting or rejecting the nomination paper)

I have examined the nomination paper in accordance with Sub-Rule (2), (b), (i), (ii), and (iv) of Rule-22 and decided as below:

.....

Signature of the Officer

Date

Receipt for nomination paper and notice of Scrutiny (to be handed over the person presenting the nomination paper)

Serial number of nomination paper

This nomination paper of Shri/Smti for election as the member of Gaon Panchayat from Constituency was delivered to me at (place) at (hours) on (date) by the candidate/ proposer.

This nomination paper will be taken up for scrutiny at (place) at (Hours) on (date).

Date

Signature of the Officer.

Form II-B

[Sub-Rule (i) of Rule-22]

[Nomination Paper for Election of the President of Gaon Panchayat or the Member of Anchalik Panchayat and Member of Zilla Parishad]

I, hereby nominate shri/Smti as a candidate for election of President of Gaon Panchayat/Member of Anchalik Panchayat/Member of Zilla Parishad from Gaon panchayat area/Constituency No. for Zilla Parishad of the District of Candidate name

His/her postal Address

His/her name is entered against in serial number of the Electoral Roll of Village of Constituency of the Gaon Panchayat/Zilla Parishad of the district of My name is and entered against serial number of the Electoral Roll Village of Constituency of the Gaon Panchayat/Zilla Parishad of the district of

Signature of thumbImpression of the proposer.

Date

1. I, the above mentioned candidate, assent to this nomination. I declare that the symbol I have chosen in order of preferences are (1) (2) (3)

2. I am Independent candidate and the symbols I have chosen in the order of preference are (1) (2) (3)

3. I am an officially sponsored candidate of a National/State party recognised by the Election Commission of India having its symbol.

I further declare that I am a member of the Tribe/Castes which is a Scheduled Tribe/Caste in relation to the State of Assam under the Constitution of India.

The Security Money amounting to Rs. (in words) has been deposited vide Receipt No. of is enclosed herewith.

Signature of thumbImpression of the Candidate.

Date

(To be filled up by the officer authorised)

Serial Number of nomination paper

This nomination paper was delivered to me at (place) at (Hours) on (Date) by the candidate/proposer.

Signature of the Officer./Deputy Commissioner.

(Decision of the officer/Deputy Commissioner accepting or rejecting the nomination)

I have examined the nomination paper in accordance with Sub-Rule (2), (b), (i), (ii), (iii) and (iv) of Rule-22 and decided as below:

.....

Signature of the Officer/Deputy Commissioner

Receipt for nomination paper and notice of Scrutiny (to be handed over the person presenting the nomination paper)

Serial number of nomination paper

This nomination paper of Shri/Smti a candidate for election as the President of Gram Panchayat/member of Anchalik Panchayat/member of Zilla Parishad from Gaon Panchayat area/Zilla Parishad Constituency No. of the district of was delivered to me at (Place) at (Hours) on (date) by the candidate/Proposer.

This Nomination paper will be taken up for scrutiny at (Place) at (Hours) on (date).

Date

Signature of the Officer.

(Score the Paragraph, word or words not relevant)

Form III-A

List of Contesting Candidates

[Rule-25]

Election of the Gaon Panchayat/Gaon Panchayat Members falling within Anchalik Panchayat to the Gaon Panchayat.

Sl. No.

Name of Candidates (Shri/Shrimati, should be affixed before the name to indicate sex)

Scheduled Caste or Scheduled Tribe

Address of Candidate

Symbol allotted

1

2

3

4

5

The poll will be between the hours of O'clock in the forenoon and O'clock in the afternoon on

..... Date at (Place).

Form III-B

List of Contesting Candidates

[Rule-26]

Election of the Member of Anchalik Panchayat/Zilla Parishad within the Sub-Division to that Anchalik Panchayat/Zilla Parishad.

Sl. No.

Name of Candidates (Shri/Shrimati, should be affixed before the name to indicate sex)

Scheduled Caste or Scheduled Tribe

Address of Candidate

Symbol allotted

1

2

3

4

5

The poll will be between the hours of O'clock in the forenoon and O'clock in the afternoon on Date at (Place).

Signature of the Officer/Deputy Commissioner

Form IV

Ballot Paper

(Sub rule (6) of Rule 46/sub-rule (6) (1) of Rule 48/ sub-rule(6) (1) of Rule 50]

Election of Vice President of Gaon Panchayat /President and Vice-President of Anchalik Panchayat /President and Vice-President of Zilla Parishad.

Serial No.

Sl. No.

Name of Candidates

Vote Cross (x) Marks

1

2

3

Instruction:

1. Number of Person to be elected-one.

2. only one vote is to be given.

3. You must not vote for more than one candidate.

4. A Cross (x) mark shall be place in column No. 3 against the name of the candidate for whom the voter wishes to vote.

(Score out the word or words not applicable)

I

(Rule 21)

Free Symbols

1. Aeroplane

2. Bicycle

3. Boat

4. Bow & Arrow

5. Bucket

6. Car

7. Cart

8. Cup and Plate

9. Dao

10. Hand Pump

11. Coconut Tree
12. Hurricane Lamp
13. Ink pot and Pen
14. Jug
15. Letter Box
16. Lock and Key
17. Plough
18. Pitcher
19. Radio
20. Railway Engine
21. Rising Sun
22. Spade
23. Spectacle
24. Sewing Machine
25. Two leaves
26. Watch

I(A)

(Rule 21)

National Parties

Name of the party

Symbol reserved

Symbol

1. Bhartiya Janata Party

Lotus

(Symbol)

2. Communist Party of India

Earns of Corn and Sickle

(Symbol)

3. Communist Party of India(Marxist)

Hammer, Sickle

(Symbol)

4. Indian National Congress (1)

Hand

(Symbol)

5. Janata Dal

Chakra(Wheel)

(Symbol)

6. Janata Party (JP)

Farmer digging with mamti within a wheel

(Symbol)

7. Lok Dal(B)

Farmer driving Bullock cart

(Symbol)

I (B)

(Rule 21)

Symbols Reserved for State Parties (Assam)

1. Assam Gana Parishad

Elephant

(Symbol)

2. Plains Tribals Council of Assam

Cultivator cutting crop

(Symbol)

3. United Minorities front, Assam

Ladder

(Symbol)

Related AI tags, queries and research notes

Translation